

**INNOVATION PROOF OF  
CONCEPT AND PILOT  
AGREEMENT for the FALCON  
(Fiber AnaLytics and COgnitive  
solution) Project**

**BETWEEN**

**Contracting Party Name 1  
[Contracting Party 1 BRN Number]**

**AND**

**Company Name  
[BRN Number]**

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This Agreement is made on

**BETWEEN**

**Contracting Party Name 1 [Contracting Party 1 BRN Number]**, a company incorporated and registered in Malaysia under the Companies Act 2016 (Act 777), with its registered office at Contracting Party 1 Business Address (hereinafter referred to as the “Vendor”), which expression shall where the context so requires include its successors, assigns and partners, of one part;

**AND**

**Company Name [BRN Number]**, a company incorporated and registered in Malaysia under the Companies Act 2016 (Act 777), with its registered office at Company Address (hereinafter referred to as “TM”), which expression shall where the context so requires include its successors and assigns, of the last part.

Both the Vendor and TM shall be collectively referred to as the “Parties” and individually as the “Party”.

**RECITALS**

**WHEREAS: -**

- (A) TM is undertaking the FALCON (Fiber AnaLytics and COgnitive solution) Project, an innovation initiative intended to co-create, validate and pilot a predictive and preventive analytics solution to improve the resilience, visibility and operational efficiency of TM’s fibre network.
- (B) The Vendor is a startup or innovation-enabled company with relevant expertise, capability and resources to design, develop, configure, integrate, deploy and support the proposed FALCON solution, including any software, analytics model, dashboard, data pipeline, workflow, documentation, training, reports and other deliverables required under this Agreement.
- (C) The Parties intend for this Agreement to cover two sequential stages, namely the proof of concept stage and, subject to successful completion and TM’s written approval, the pilot stage. If the proof of concept stage is not successfully completed or TM does not approve the progression to the pilot stage, this Agreement shall expire or terminate in accordance with its terms without any obligation on TM to proceed further.

NOW, THEREFORE, in consideration of the foregoing and of the mutual promises and covenants set forth herein, the Vendor and TM agree to enter into this Agreement in accordance with the terms and subject to the conditions contained hereinafter.

**1. DEFINITIONS AND INTERPRETATIONS**

- 1.1 In this Agreement, unless the context otherwise requires the following expressions, shall have the meaning respectively assigned to them:

“**Agreement**” shall mean the formal agreement as comprised on these terms and conditions and the incorporated exhibits;

**“Attachments”** shall mean one, several or all documents which are annexed to and form part of this Agreement;

**“CMA”** shall mean the Communications & Multimedia Act 1998;

**“Effective Date”** shall mean date of signing of this Agreement;

**“Equipment”** shall mean any equipment, devices, IoT hardware, accessories, tools, components, peripherals and other related materials required, supplied, installed, configured, used or made available by the Vendor for the purpose of the Trial, whether from the Vendor’s existing inventory or procured by the Vendor specifically for the Trial. For the avoidance of doubt, unless otherwise expressly agreed in writing by TM, all Equipment shall remain the property of the Vendor or its relevant suppliers notwithstanding that TM may make any payment, reimbursement or cost contribution towards the procurement or use of such Equipment under this Agreement;

**“Intellectual Property”** shall mean all trademarks, service marks, trade names, trade dress, copyrights, patents and industrial designs registrations and/or applications for registrations of trademarks, service marks, trade names, trade dress, copyrights, patents and industrial designs owned, licensed or used by a Party to this Agreement (or its parents, subsidiaries, branches or affiliates) together with any other copyrights, trade secrets, inventions, technology, know-how, customer or product information, designs, formulas, technical information, Confidential Information or proprietary information or other proprietary know-how owned, licensed or used by such Party;

**“MCMC”** shall mean the Malaysian Communications and Multimedia Commission established under the Malaysian Communication and Multimedia Commission Act 1998;

**“OSH”** shall mean Occupational and Safety Health;

**“POC”** shall mean proof of concept;

**“SIRIM”** shall mean SIRIM Berhad;

**“Solution/ System”** shall mean predictive and preventive analytics solution to improve the resilience, visibility and operational efficiency of TM’s fibre network;

**“Trial”** shall mean the technical trial of the Solution/ System, comprising the following stages, as further described in **Schedule 1** of this Agreement:

- (a) POC Stage: the proof of concept stage for the technical assessment, validation and evaluation of the Solution/System; and
- (b) Pilot Stage: the pilot stage for further validation, testing and assessment of the Solution/System, subject to TM’s written approval to proceed.

**“Trial Site”** shall mean any agreed site, environment or premises for testing, validation, deployment or use of the Solution/System, including TM’s premises where applicable.

- 1.2 The headings in this Agreement are for convenience only and shall not be taken into consideration in the interpretation or construction of this Agreement. The schedules,

appendices, attachments and annexures to this Agreement shall form an essential part of this Agreement. In the event of any conflict between or among these documents, the terms and conditions of the Agreement shall prevail over the schedules, appendices, attachments and annexures to this Agreement.

- 1.3 Words importing the singular number include the plural and vice versa where the context so requires. Words importing a particular gender shall include all the genders.
- 1.4 Words importing persons shall include firms (whether incorporated or unincorporated) and corporations.
- 1.5 A reference to any statute or statutory provision includes a reference to that statute or statutory provision as from time to time amended, extended or re-enacted and shall include all by-laws, instruments, orders, rules and regulations made thereunder.
- 1.6 A reference to a document includes an amendment or supplement to or replacement or novation of that document.
- 1.7 Any express statement of a right of a Party under this Agreement is without prejudice to any other right of that Party provided under this Agreement or arising at law or in equity.
- 1.8 Any reference to a “day”, “week”, “month” or “year” is to that day, week, month or year in accordance with the Gregorian calendar. If any period of time is specified from a given day, or the day of a given act or event, it is to be calculated of that day and if any period of time falls on a day, which is not a Business Day, then that period is to be deemed to only expire on the next Business Day.
- 1.9 The words “herein”, “hereinafter”, “hereinbefore”, “hereof”, “hereunder” and any other words of similar import shall, unless otherwise indicated, refer to this Agreement as a whole and not to any particular provision.

## **2. PURPOSE AND STAGE-GATE STRUCTURE**

- 2.1 The purpose of this Agreement is to establish the terms under which the Parties will collaborate for the FALCON Project through the following stages:
  - (a) **POC Stage:** co-development, configuration and validation of the proposed FALCON solution in a controlled environment to confirm technical feasibility, solution fit, data readiness, model accuracy, dashboard functionality, operational usability and business impact against the agreed success criteria; and
  - (b) **Pilot Stage:** subject to successful completion of the POC Stage and TM’s written approval, deployment and validation of the FALCON solution in selected field or operational environments to assess scalability, operational effectiveness, integration readiness, user adoption and readiness for possible future deployment or scale-up.
- 2.2 The Parties acknowledge that the POC Stage and Pilot Stage are innovation validation activities and shall not be construed as a commitment by TM to procure,

commercialise, roll out or deploy the FALCON solution after completion of the Pilot Stage unless a separate written agreement is executed by the Parties.

- 2.3 Both Parties acknowledge that nothing in this Agreement shall be construed as a commitment by the Vendor to offer the Solution/ System to TM nor a commitment by TM to purchase the Solution/ System from Vendor following the termination of the Trial.
- 2.4 Upon completion of the POC Stage, TM shall evaluate the Vendor's performance and deliverables against the success criteria and deliverables set out in **Schedule 2**. TM may, at its sole discretion, issue a written notice to proceed to the Pilot Stage. If TM does not issue such written notice, or if the POC Stage is unsuccessful, this Agreement shall end upon completion of the POC Stage save for accrued rights and surviving obligations.
- 2.5 For the avoidance of doubt, any continuation after the Pilot Stage, including potential full deployment, commercial roll-out, managed service, licensing, acquisition of intellectual property, revenue sharing, joint commercialisation, equity participation or any other partnership model shall be subject to TM's internal approvals, applicable procurement requirements and a separate written agreement.

### **3. OBLIGATIONS OF THE VENDOR**

- 3.1 The Vendor in carrying out the Trial has the following obligations:
  - (a) develop, configure and implement the Solution/ System in accordance with the agreed scope, milestones, success criteria and technical requirements, including any predictive model, heatmap, dashboard, workflow automation, reporting module, data ingestion process, integration component, documentation and user enablement materials required for the POC Stage and, if approved by TM, the Pilot Stage.
  - (b) allocate competent personnel, maintain sufficient resources, attend governance and project meetings, provide progress reports, promptly escalate issues and cooperate with TM to meet the stage-gate timelines and deliverables.
  - (c) ensure that all tools, software, libraries, data processing methods, models and third-party components used for the Solution/ System are properly licensed, secure, lawful, fit for purpose and do not infringe any third-party rights.
  - (d) comply with TM's information security, data protection, access control, cybersecurity, site access, safety, procurement, governance and confidentiality requirements applicable to the FALCON Project.
  - (e) conduct the Trial of the Solution/ System with TM in accordance with the parameters to be agreed by the Parties.
  - (f) provide, procure, install, configure, operate, maintain, support, remove and reinstate all Equipment required for the Trial.

- (g) in the event of any loss, theft, damage, malfunction, defect or non-compliance of any Equipment, at its own cost and expense, immediately take all remedial actions necessary to minimise any impact on TM's operations and shall repair, replace or rectify the affected Equipment as soon as reasonably practicable.
- (h) ensure that the Equipment and System/ Solution are restored to their original operational state (or an equivalent or better state acceptable to TM) without interruption or degradation to TM's operations. All costs relating to such restoration, repair, replacement, removal, reinstallation and recommissioning shall be borne solely by the Vendor.
- (i) deliver to TM the Solution/ System for their evaluation.
- (j) assign a technical and business contact ("Trial Liaisons") to assist TM with issues relating to the subject-matter hereof. Trial Liaisons are set forth in **Schedule 6**.
- (k) obtain necessary approvals from all relevant authorities including but not limited to MCMC and building owner(s) to conduct the Trial. Any cost to obtain the relevant approvals shall be borne by the Vendor.
- (l) conduct regular meetings with TM to review Trial plans and progress as well as discuss additional opportunities related to the Trial issue resolution, feedback from TM, sharing of market research and analysis and technical support topics;
- (m) ensure that the installation of the Equipment (if any) at the agreed Trial Site shall be in accordance with the laws and regulations;
- (n) when installing the Equipment (if any), the Vendor shall ensure that the Equipment obtains SIRIM's special approval in accordance with the relevant guidelines as imposed by the MCMC and any cost whatsoever shall be solely borne by the Vendor;
- (o) during the Trial Period, the Vendor will perform in depth testing of the user experience and provide final report on network and application performance to TM.
- (p) adhere to the existing security, safety guidelines and regulations of TM's premises and properties when installing and conducting performance tests for the Equipment, and shall further observe Section 235 of the CMA 1998 in event tampering of Equipment results in damage to network facilities. Any damage caused whatsoever shall be immediately rectified by the Vendor and all cost shall be borne by the Vendor.
- (q) warrant that the Equipment procured shall be free from defects, and fit for its purpose in design, technical specifications for the purpose of the Trial and shall not infringe any third party rights.

#### **4. OBLIGATIONS OF TM**

- 4.1 TM during the conduct of the Trial has the following obligations:

- (a) provide reasonable access to relevant subject matter experts, selected users, agreed data sources, trial environments and operational inputs required for the FALCON Project, subject always to TM's internal policies, security requirements and availability of resources.
- (b) review the Vendor's milestone deliverables, provide feedback within a reasonable period and notify the Vendor whether the POC Stage has met the success criteria for progression to the Pilot Stage.
- (c) cooperate with the Vendor in all aspects of the Trial as reasonably required by the Vendor. Cooperation shall include: evaluating the Solution/ System while the Trial is in progress and provide feedback concerning the virtues and shortcomings of the Solution/ System. During the Trial, TM shall permit the Vendor, upon reasonable request, to perform iterations, tests, experiments and measurements relating to the development of Solution/ System as the Vendor deems appropriate.
- (d) appoint a representative ("Trial Liaisons") to be primary points of contact for the Trial. The Trial Liaisons are set forth on **Schedule 6**. During the term of the Trial, the Trial Liaisons will attend regularly scheduled meetings with the Vendor.
- (e) TM shall witness, provide information and oversee the performances tests conducted by the Vendor to comply with the acceptance criteria and endorse the results.
- (f) identify and select trial users together with the Vendor for Trial to test different usage models of the Solution/ System.

## **5. PAYMENT FOR POC STAGE AND PILOT STAGE**

- 5.1 Subject to the Vendor's satisfactory completion of the relevant milestones and TM's written acceptance of the corresponding deliverables, TM shall pay the Vendor the fees specified in the payment schedule in **Schedule 3**.
- 5.2 No payment for the Pilot Stage shall be due unless TM has issued written approval for the Vendor to proceed to the Pilot Stage. If the POC Stage is unsuccessful or TM does not approve progression to the Pilot Stage, TM shall only be liable to pay the accepted POC Stage milestone fees, if any, in accordance with this Agreement.
- 5.3 Unless otherwise agreed in writing, the Vendor shall submit invoices only after TM's written acceptance of the applicable milestone deliverable. Payment shall be made within thirty (30) days from TM's receipt of a valid and undisputed invoice together with all supporting documents required by TM.
  - (a) Any claims from third parties due to interference caused by the Equipment and its accessories shall be borne by the Vendor; and
  - (b) All cost in relation to the Trial including but not limited to the transportation costs, government and import tax shall be borne by the Vendor.
- 5.4 Where the Vendor is required to procure any new Equipment specifically for the Trial, TM may, subject to TM's prior written approval and the payment schedule in

**Schedule 3**, reimburse or contribute towards the actual procurement cost of such Equipment. Any such payment shall be strictly limited to the approved amount and shall be subject to the Vendor's submission of satisfactory supporting documents, including quotation, purchase order, invoice, receipt and proof of delivery or installation, as may be required by TM.

- 5.5 For the avoidance of doubt, any payment, reimbursement or cost contribution made by TM in respect of the Equipment shall not be construed as a purchase of the Equipment by TM, nor shall it transfer any title, ownership, beneficial interest or asset rights in the Equipment to TM. The Equipment shall remain the property of the Vendor or its relevant suppliers at all times, and the Vendor shall remain fully responsible for all risks, warranties, defects, maintenance, insurance, approvals, licences, removal, reinstatement and liabilities relating to the Equipment.

## **6. TRIAL PERIOD**

- 6.1 The term of this Agreement shall commence on the Effective Date and shall continue until completion of the POC Stage, unless earlier terminated in accordance with this Agreement. If TM issues written approval for progression to the Pilot Stage, this Agreement shall continue until completion of the Pilot Stage or such other date as may be agreed in writing by the Parties.
- 6.2 The indicative duration for the POC Stage and Pilot Stage shall be as set out in **Schedule 1**. Any extension shall be subject to TM's prior written approval and mutual agreement of the Parties.
- 6.3 The Vendor shall complete the POC Stage in accordance with the POC acceptance test plan, test requirements, evidence requirements, defect classification and acceptance basis set out in **Schedule 2**. TM shall be entitled to review, witness, test, verify and endorse the POC results against the requirements in **Schedule 2**. The POC Stage shall only be deemed successfully completed when TM has issued its written acceptance confirming that the applicable test requirements and acceptance basis have been satisfied. For the avoidance of doubt, TM may reject the POC Stage, require rectification, approve an agreed remediation plan, or withhold progression to the Pilot Stage if the POC results do not meet the requirements in **Schedule 2** or are otherwise not accepted by TM in writing.
- 6.4 Upon completion of the POC Stage, TM may either:
- (a) approve progression to the Pilot Stage by written notice to the Vendor, subject to any conditions, revised milestones, deliverables, payment schedule or governance requirements determined by TM; or
  - (b) notify the Vendor that the POC Stage is unsuccessful or that TM does not intend to proceed to the Pilot Stage, in which case this Agreement shall end upon the date specified in TM's notice or, if no date is specified, upon receipt of such notice by the Vendor.

- 6.5 If TM issues written approval for the Vendor to proceed to the Pilot Stage, the Vendor shall carry out the Pilot Stage in accordance with the pilot KPIs, reporting requirements and completion deliverables set out in **Schedule 4**. The Pilot Stage shall only be deemed completed when the Vendor has submitted the required final pilot report, KPI achievement report, operational readiness assessment, scale-up recommendation, final documentation and knowledge transfer materials, and TM has issued written acceptance or closure notice in accordance with **Schedule 4**. For the avoidance of doubt, TM's acceptance or closure of the Pilot Stage shall not oblige TM to proceed with any scale-up, commercial deployment, procurement, licensing or further arrangement unless otherwise agreed in a separate written agreement.

## **7. TERMINATION**

- 7.1 TM may terminate this Agreement by giving a written notice if: -

- (a) the Vendor is guilty of any material breach, non-observance or non-performance of its obligations hereunder and does not remedy the same (if it is capable of remedy) within thirty (30) days of receipt of a written notice from TM specifying the nature of the breach and requiring its remedy; or
- (b) the Vendor goes into liquidation, become or threatens or resolves to TM that the Vendor shall not permit and/or authorize others to receive, transmit and/or exhibit any part of the channel by any means or medium in any territory other than the Territory, except with specific written authorization by the Government; become insolvent or compounds with or makes arrangements with its creditors, or commit an act of bankruptcy or a receiver or receiver and manager or official assignee is appointed over the assets of the Vendor; or
- (c) the POC Stage fails to meet the agreed success criteria, the Vendor fails to achieve any material milestone, or TM determines that the Solution/ System is not technically, operationally, commercially or strategically viable for continuation to the Pilot Stage; or
- (d) the Vendor fails to comply with TM's information security, confidentiality, data access, cybersecurity, governance, safety, regulatory, procurement or integrity requirements applicable to the FALCON Project.
- (e) performance of the Agreement is substantially prevented for a continuous period of twenty (20) Business Days by virtue of any of the Force Majeure events stipulated in Clause 13 (Force Majeure) of this Agreement.

### **7A. TERMINATION WITHOUT CAUSE**

TM shall have the right, at any time and at its absolute discretion, to terminate this Agreement without cause and without assigning any reason whatsoever by thirty (30) days' written notice to the Vendor. The notice of termination shall specify the date upon which such termination becomes effective.

## **8. CONSEQUENCES OF TERMINATION**

- 8.1 Each Party's further rights and obligations will cease immediately on termination of this Agreement but will not affect (a) a Party's rights and obligations accrued as



at termination; and (b) any provision of this Agreement expressed to survive its termination

- 8.2 On termination of this Agreement or expiration of the Trial Period, each Party will immediately return to the other Party any and all property of whatever kind and nature provided under this Agreement and belonging to the other Party. For avoidance of doubt, the cost to dismantle the Equipment (if any) shall be solely borne by the Vendor.
- 8.3 Without prejudice to other provisions herein, TM shall be entitled to retain and apply any monies which may be otherwise due under this Agreement by it to the Vendor, or such part thereof as may be necessary, to the payment of the cost of executing or of completing the Trial and the expenses and losses incurred by TM by reason of the termination.
- 8.4 If any negligence, default or breach of this Agreement by the Vendor causes claims to be made against TM by some other vendors employed by TM, then TM shall be entitled to recover from the Vendor the amount of such claims made against it.

#### **8A. LIMITATION OF LIABILITY**

- 8A.1 TM shall not be liable to the Vendor whether based on contract, warranty, negligence or other legal or equitable grounds for any economic loss and loss of interest, profits, contracts, business or revenue or any consequential, indirect, incidental, special, punitive and/or exemplary damages suffered by the Vendor arising out of or in relation to this Agreement. This clause shall remain in force notwithstanding the termination of this Agreement.
- 8A.2 Nothing in this Agreement shall be intended to disclaim or limit the Vendor's liability in relation to:
  - (a) death or personal injury arising from the Vendor's negligence or his intentional acts;
  - (b) damage of any kind to any property real or personal arising from the Vendor's negligence or his intentional acts;
  - (c) fraudulent act and/or omission committed by the Vendor;
  - (d) Vendor's willfull default in performing his obligations under this Agreement;
  - (e) infringement of Intellectual Property Rights; and
  - (f) breach of confidentiality.
- 8A.3 The Vendor shall at all times indemnify and keep TM indemnified from all and any claims of the nature indicated in Clause 8A.2 above.

#### **9. INSURANCE**

- 9.1 Without prejudice to the Vendor obligations to indemnify TM, the Vendor shall be responsible to obtain a comprehensive general liability insurance and/or any other necessary insurance coverage which should be valid throughout the Trial Period.
- 9.2 The Vendor shall, promptly upon request, deliver to TM current certificates of insurance demonstrating that all of the insurance required herein is in force. The Vendor will give TM fifteen (15) days' notice prior to any cancellation or non-renewal of the policies required hereunder, provided that the Vendor shall not be

obligated to provide such notice if, concurrently with such cancellation or non-renewal, the Vendor obtains similar coverage from another insurer, without a lapse in coverage.

## **10. OCCUPATIONAL SAFETY AND HEALTH**

### **10.1 Compliance with OSH Requirements**

So far as is practicable, the Vendor shall take all precautions necessary to protect the environment, property and its own employees and any employees of TM and other persons who are at any time directly or indirectly affected by the operations of the Vendor in conducting the Trial. Such precautions shall include, but shall not be limited to, the provision of information on the Equipment and substances to be used, and that the hazards and risks involved in the performance of the Trial are identified and managed in accordance with the requirements of the Occupation, Safety and Health Act 1994 (“OSH Requirements”).

### **10.2 Occupational Safety and Health (OSH) Personnel**

- (a) The Vendor shall ensure compliance with the OSH Requirements commensurate with the nature and extent of the Trial. The Vendor shall, if required by TM to do so, appoint a suitably qualified and experienced person as an OSH officer or representative (“Occupational Safety and Health Officer”) who shall be responsible for his compliance with the OSH Requirements and matters relating to the Equipment and Trial.
- (b) The Vendor shall, from time to time, provide such other personnel and resources as may be required to ensure the effective implementation of the OSH program on site. The Vendor shall conduct training programmes for all workmen including workmen of its sub-contractors for purposes of compliance with the OSH Requirements.

### **10.3 Submission of Occupational Safety and Health (OSH) Plan**

- (a) The Vendor shall submit an OSH Plan to ensure that all activities required for the execution of Trial are carried out in a safe manner and in compliance with the OSH Requirements.
- (b) The OSH Plan shall be subject to the approval of TM of the OSH Plan shall not relieve the Vendor of any of its obligations under the Agreement.

### **10.4 Occupational Safety and Health (OSH) Measures**

- (a) Once on Trial Site, the Vendor’s personnel shall familiarize himself with the area of the Trial Site where the Trial is to be performed and any operating units bordering the same and the hazards which might be encountered in carrying out the Trial for which is envisaged in this Agreement. The Vendor shall fully co-operate and comply with any directives from TM or any regulatory authority, should any of them consider that there is hazard involved requiring the Vendor therefore to alter its mode of operations.

- (b) The Vendor shall be under an obligation to take all reasonable measures in relation to the Trial undertaken and shall conduct himself, manage his work force and carry out his operation in such a way as to comply at all times with obligations and duties under the OSH Requirements.
- (c) The Vendor shall ensure the usage of personal protective clothing and equipment whenever it is required and shall provide the personal protective clothing and equipment at his own expense as required by his personnel to comply with the OSH Requirements.
- (d) The Vendor shall ensure that the tools and equipment, and other items used in the execution of the Trial are in a safe, sound and good condition and capable of performing the function for which they are intended.
- (e) No employees of the Vendor or of the Vendor's sub-contractors or any other persons employed through the Vendor shall be assigned to work on the Trial unless they are trained through the National Institute of Occupational Safety and Health (NIOSH) or any other licenses/ training courses which TM may so require.

#### 10.5 Site Accidents

- (a) The Vendor shall immediately report to TM any accidents, injuries or near misses arising from the execution of the Trial, soonest possible within twenty-four (24) hours from the time of occurrence.
- (b) The Vendor shall furnish to TM full details of such accidents, injuries or near misses or other relevant information as may be required by TM within three (3) days after the occurrence.
- (c) TM shall be entitled to carry out any investigations of such accidents, injuries or near misses. The Vendor shall render full assistance to TM for purposes of such investigations.

#### 10.6 Non-Compliance of Occupational Safety and Health (OSH) Requirements

- (a) Without prejudice to the Vendor's obligations as set out herein, TM shall have the right at any time and from time to time to carry out occupational safety and health inspection and audit during performance of the Trial hereunder.
- (b) If during the performance of the Trial under the Agreement, TM informs the Vendor that it is in the opinion that the Vendor is:
  - (i) not conducting the Trial in compliance with the management procedures, relevant legislation, its OSH plan or OSH procedures provided by TM from time to time; or
  - (ii) conducting the Trial in such a way as to endanger the Vendor's and sub-contractor's employees, equipment or materials or the environment,

the Vendor shall promptly remedy that breach of occupational safety, health and environment provisions.

- (c) TM may direct the Vendor to suspend the Trial until such time as the Vendor satisfies TM that the Trial will be resumed in conformity with applicable occupational safety, health and environment provisions.
- (d) If the Vendor fails to rectify any breach of occupational safety, health and environment provisions for which the work has been suspended, or if the Vendor's performance has involved recurring breaches of occupational safety, health and environment provisions, TM may at its option terminate the Trial forthwith, without further obligation to the Vendor and no liability accrued whatsoever.

## **11. INDEMNITY**

### **11.1 The Vendor shall indemnify TM: -**

- (a) for all costs, damages, losses, expenses or liabilities incurred or suffered as a result of the failure of the Trial and/or the Vendor's negligence, omission or otherwise during the installation, connection, operation, maintenance or construction or engineering work relating to the Trial.
- (b) from and against all claims, liabilities, damages, and expenses (including reasonable legal fees) of any kind or character, alleged, charged, or otherwise asserted by third parties arising out of its workmen's negligence and/or omission and interference caused by the Equipment as a result of its performance under this Agreement.
- (c) against any liability, loss, claims or proceedings whatsoever arising under any statute or at common law in respect of personal injuries to or the death of any person or damage to tangible personal or real property of any third party arising out of or in the course of or caused by the carrying out of this Agreement due to the acts, negligence, omissions or defaults of the Vendor, his servants or agents.
- (d) against third party claims or proceedings, that TM's use of the Solution/ System and/or Equipment, as expressly authorized herein only, during the Trial Period infringes any third-party copyright or patent or misappropriates, any third-party trade secret and trademark.
- (e) Subject to the above Clauses 11.1 (a) – (d), the Vendor shall be responsible to conduct and manage any actions, claims and/or suits by third parties against TM in relation to this Agreement provided that TM shall be consulted at all material times. The Vendor shall not, without the prior written consent of TM, settle, compromise or consent to the entry of any judgment that imposes any material obligation upon TM that the Vendor does not discharge.

## **12. INTELLECTUAL PROPERTY RIGHTS**

- 12.1 Each Party shall retain ownership of its pre-existing Intellectual Property, know-how, tools, software, data, models, methodologies, materials and technology that existed prior to this Agreement or were developed independently outside the scope of this Agreement ("Background IP"). Nothing in this Agreement transfers ownership of a Party's Background IP to the other Party.

- 12.2 All TM data, network data, operational data, customer data, site information, business information, requirements, feedback, evaluation results, reports generated from TM data and any derivative insights specific to TM's network, operations or business shall belong to TM. The Vendor shall not use, disclose, commercialise or retain such data or insights except strictly for the performance of this Agreement.
- 12.3 Subject to Clause 12.1, all Intellectual Property rights, title and interest in and to any new Intellectual Property, works, materials, software, source code, object code, algorithms, models, dashboards, workflows, configurations, customisations, integration artefacts, APIs, data mappings, documentation, reports, designs, specifications, outputs, improvements, modifications and other deliverables developed, created, reduced to practice, configured, customised or produced by the Vendor, whether solely or jointly with TM, under or in connection with this Agreement and the FALCON Project ("New IP") shall vest in and be owned exclusively by TM upon creation, delivery or payment, whichever occurs earliest.
- 12.4 The Vendor hereby irrevocably assigns, transfers and conveys to TM all rights, title and interest in and to the New IP, including all copyright, patent rights, database rights, trade secrets, know-how and all other Intellectual Property rights therein, on a worldwide, perpetual, irrevocable, royalty-free and fully paid-up basis. The Vendor shall execute, and shall procure that its employees, agents, subcontractors and representatives execute, all documents and do all acts as may be required by TM to perfect, evidence or enforce TM's ownership of the New IP.
- 12.5 TM shall have full and unrestricted rights to use, access, reproduce, modify, adapt, enhance, maintain, support, integrate, scale, deploy, operate, commercialise, market, sell, license, sublicense, distribute and otherwise exploit the New IP, whether for TM's internal business purposes, for integration into TM's products, services, platforms or offerings, or for provision to TM's customers, affiliates or third parties. The Vendor shall have no right to use, reproduce, disclose, commercialise, market, sell, license, sublicense or otherwise exploit the New IP except with TM's prior written consent or under a separate written agreement executed by the Parties.
- 12.6 To the extent any Vendor Background IP, third-party component, open-source software, tool, library, framework, model, dataset, methodology or other pre-existing material is incorporated, embedded, linked, required or necessary for the use, operation, modification, maintenance, support, integration, scaling, commercialisation or exploitation of the New IP or the Solution/System, the Vendor shall procure and grant to TM a perpetual, irrevocable, worldwide, royalty-free, fully paid-up, transferable and sublicensable licence to use, access, reproduce, modify, adapt, maintain, support, integrate, scale, deploy, operate, commercialise and otherwise exploit such materials as part of, or in connection with, the New IP and the Solution/ System. The Vendor shall not incorporate any third-party or open-source component that would restrict TM's ownership or exploitation of the New IP, require disclosure of TM's proprietary information or source code, or impose any adverse licensing, payment, attribution, copyleft or use restriction on TM, unless the Vendor has first fully disclosed the same to TM and obtained TM's prior written approval.
- 12.7 The Vendor represents, warrants and undertakes that:

- (a) it owns or has secured all rights, licences, consents and permissions necessary to develop, deliver, assign and transfer the New IP to TM;
- (b) the New IP and TM's use, modification, integration, scaling, commercialisation or exploitation of the New IP shall not infringe, misappropriate or violate any third-party Intellectual Property rights or other rights;
- (c) the New IP shall be free from any lien, charge, encumbrance, restriction, royalty obligation or third-party claim that may affect TM's ownership, use or exploitation of the New IP;
- (d) the Vendor shall deliver to TM all source code, object code, repositories, build files, deployment scripts, technical documentation, architecture documents, credentials, configuration files, test materials, user guides and other materials reasonably required for TM to use, maintain, modify, support, integrate, scale and continue the New IP and the Solution/System independently; and
- (e) the Vendor shall indemnify and keep TM indemnified against all claims, losses, damages, costs, liabilities and expenses arising from or in connection with any breach of this Clause 12, any infringement or alleged infringement of third-party Intellectual Property rights, or any failure by the Vendor to provide clean and unrestricted title to the New IP.

### **13. FORCE MAJEURE**

- 13.1 The Parties shall not be liable for any breach of this Agreement arising from causes beyond their control including but not limited to acts of God, insurrection, civil disorder, war or military operations, national or local emergency, acts or omission of government or other governmental authorities, industrial disputes of any kind (whether or not involving any of the Parties employees), fire, lightning, explosion, flood, subsidence, inclement weather, acts or omission of persons or bodies whom the Parties are not responsible for or any other cause whether similar or dissimilar outside the Parties control.
- 13.2 Any Party who is, by reason of Force Majeure, unable to perform any obligation or condition required by this Agreement to be performed shall notify the other Parties as soon as possible specifying:
  - (a) the cause and extent of such non-performance;
  - (b) the date of commencement of non-performance; and
  - (c) the means proposed to be adopted to remedy or abate the Force Majeure.
- 13.3 A Party who is, by reason of Force Majeure, unable to perform any obligation or condition required by this Agreement to be performed:
  - (a) shall use all reasonable diligence and employ all reasonable means to remedy or abate the Force Majeure as expeditiously as possible (provided however that neither Party shall, by virtue of this clause, be required against the will of such party to terminate or settle any strike, lockout or other labour dispute);
  - (b) shall resume performance as expeditiously as possible after termination of the Force Majeure or the Force Majeure has abated to an extent which permits resumption of such performance; and

- (c) shall notify each party when the Force Majeure has terminated or abated to an extent which permits resumption of performance to occur.
- 13.4 Subject to any other termination provisions, a non-performance by either of the Parties of any obligation or condition required by this Agreement to be performed shall be excused during the time and to the extent that such performance is prevented, wholly or in part, by an event of Force Majeure of which notice has been given pursuant to this Agreement.
- 13.5 The period of time during which performance of any obligation or condition is prevented by Force Majeure shall be added to the time provided in this Agreement for performance of such obligation or condition and to the time required for the performance of any act dependent thereon.
- 13.6 If a delay or failure by a Party to perform its obligations due to Force Majeure exceeds twenty (20) Business Days, either Party may immediately terminate this Agreement on providing notice in writing to the other Party.
- 13.7 No Force Majeure event shall relieve the affected Party in respect of any of its obligations prior to the occurrence of the same.
- 13.8 Failure to provide notice in accordance to Clause 13.2 above, the matter shall be settled in accordance to Clause 25 (Dispute Resolution).

#### **14. CONFIDENTIALITY**

- 14.1 For a period of three (3) years from the date of disclosure thereof, each Party shall maintain the confidentiality of the terms and conditions of this Agreement as well as all information or data of any nature ("Information") provided to it by the other Party hereto provided such Information contains a conspicuous marking identifying it as "Confidential" or "Proprietary". Each Party shall use the same efforts (but in no case less than reasonable efforts) to protect the Information it receives hereunder as it accords to its own Information. The above requirements shall not apply to Information which is already in the possession of the receiving Party through no breach of an obligation of confidentiality to the disclosing Party or any third Party, is already publicly available through no breach of this Clause 14.1, or has been previously independently developed by the receiving Party. This Agreement shall not prevent any disclosure of Information pursuant to applicable law or regulation. All Information provided by any Party to the other hereunder shall be used solely for the purpose for which it is supplied.
- 14.2 All Information shall remain the property of the Party releasing it, and such Information, including all copies thereof, shall be returned to the other Party or destroyed, upon request with a written statement to the effect that upon such return or destruction it has not knowingly retained in its possession or under its control, either directly or indirectly, any Information or copies thereof and, in any event, upon termination of this Agreement.
- 14.3 The Parties acknowledge and agree that, in the event of a breach or threatened breach by any Party of any provision of this Agreement, the other Party will have no adequate remedy in money or damages and, accordingly, shall be entitled to seek an injunction against such breach from any court of law accepting jurisdiction.

14.4 This clause shall survive the termination of this Agreement.

**15. STAMP DUTY AND LEGAL COST**

The stamp duty for the Agreement shall be borne by the Vendor. The Vendor shall also bear all administrative and incidental costs arising from the preparation and completion of the Agreement documents from time to time or as required by TM.

**16. ASSIGNMENT**

The Vendor shall not assign this Agreement or any part thereof or any benefit or interest therein or thereunder without the prior written consent of TM. The Vendor shall not sub-let all or any part of this Agreement without the prior written consent of TM and such consent, if given, shall not relieve the Vendor from any liability or obligation under the Agreement and the Vendor shall be responsible for the acts, defaults and neglects of any sub-contractor/supplier, its agents, servants or workmen as fully as if they were the acts, defaults or neglects of the Vendor, its agents, servants or workmen. TM may assign or novate this Agreement or any part thereof to any company within TM's group of companies and the Vendor shall execute such document required for the assignment or novation, as the case may be, within seven (7) days from the presentation thereof by TM.

**17. AMENDMENT/ VARIATION/ MODIFICATION**

The provisions contained in this Agreement may be amended, varied, modified, supplemented or adjusted by the Parties in writing upon mutual agreement and to be duly signed by the authorized representative of each Party.

**18. WAIVER**

No forbearance, delay, or indulgence by either Party in enforcing the provisions of this Agreement shall prejudice or restrict the rights of that Party. No waiver of either Party's rights operates as a waiver of any subsequent right. No right, power, or remedy of either Party is exclusive of any other right, power, or remedy available to the Party, and each such right, power, or remedy is cumulative.

**19. SEVERABILITY**

If any provision of this Agreement shall be found by any court or administrative body of competent jurisdiction to be invalid or unenforceable, the invalidity or unenforceability of such provision shall not affect the other provisions of this Agreement and all provisions not affected by such invalidity or unenforceability shall remain in full force and effect. The Parties hereby agree to attempt to substitute for any invalid or unenforceable provision a valid or enforceable provision that achieves to the greatest extent possible the economic, illegal and commercial objectives of the invalid or unenforceable provision.

**20. EQUITABLE RELIEF**

Either Party may seek an injunction, preliminary, or other equitable relief to remedy any actual or threatened dispute.

**21. ENTIRE AGREEMENT**

The Agreement embodies the entire agreement between TM and the Vendor relating to the subject matter hereof and supersedes all prior agreements and arrangements between the Parties and there are no promises, terms, conditions or obligations, oral or written, expressed or implied other than those contained herein.

## **22. NOTICES**

A notice or other communication including, but not limited to, a request, demand, consent or approval to or by a Party to this Agreement:

(a) Must be in legible writing and in English or Bahasa Malaysia addressed as shown below:

(i) If to TM:

Address : Address

Email :

Attn :

(ii) If to the Vendor:

Address : Contracting Party 1 Business Address

Email :

Attn :

(b) Is deemed to be given by the sender and received by the addressee:

(i) if by delivery in person, courier, registered or certified post or postage pre-paid, when delivered to the addressee; and

(ii) if by email, at the time of transmission of the email,

but if the delivery or transmission is on a day which is not a business day or is delivered after 5.00 pm, it is deemed to be given at 9.00 am on the next business day.

(c) Any amendments to the details under Clause 22(a) shall be promptly communicated to the other Party in writing.

## **23. RELATIONSHIP OF PARTIES**

The relationship between the Parties is a business relationship and does not create a relationship of agency, partnership, joint venture, employment, or franchise between the Parties. Neither Party has the authority to bind the other or to incur any obligation on its behalf.

## **24. GOVERNING LAW AND JURISDICTION**

This Agreement is governed by and construed in accordance with the laws of Malaysia. Any disputes or claims arising from this Agreement shall be subjected to the exclusive jurisdiction of the Malaysia Courts.

## **25. DISPUTE RESOLUTION**

- 25.1 If a controversy, dispute, difference or claim of any kind (“Dispute”) arises out of or in connection with this Agreement (including any dispute as to its validity for any reason whatsoever, or for breach or termination of this Agreement or as to any claim in tort, in equity or pursuant to any statute), neither Party shall commence any court proceedings relating to the Dispute unless it complies with conditions as set forth in Clause 25 herein.
- 25.2 A Party claiming that a Dispute has arose under or in connection with this Agreement must give written notice to the other Party specifying the nature of the Dispute (“Dispute Notice”).
- 25.3 On receipt of the Dispute Notice by the other Party, the Parties must first endeavour in good faith and recognise their mutual obligations, to resolve the Dispute expeditiously through the process of mutual consultation and consent by the Parties.
- 25.4 In the event the Dispute is not resolved by the Parties within thirty (30) Business Days of the issue of the Dispute Notice or such further period as may be agreed by the Parties in writing, TM may choose to commence court proceedings on the other Party.

## **26. INTERPRETATIONS**

Unless otherwise stated, the headings used in this Agreement are included for convenience only and are not to be used in construing or interpreting this Agreement; any reference to the plural shall include the singular and any reference to the singular shall include the plural; any reference to a clause or appendix shall be to a clause or appendix of this Agreement.

## **27. COUNTERPARTS**

This Agreement may be signed in any number of counterparts each of which, when signed, shall be an original, but all the counterparts together shall constitute one and the same instrument.

## **28. ANNOUNCEMENT/ PUBLIC STATEMENT/ PUBLIC RELEASES**

The Vendor, its employees, agents, representatives and any person who performs services on behalf of the Vendor in connection with this Agreement shall not make any public announcement or issue any press release concerning any aspect of this Contract without the prior written approval of TM. All requests for such approval shall be directed in writing to TM and shall state the subject matter of the announcement or the text of the press release. Any announcement or press

release required by law shall in any event be issued only after prior consultation with TM.

## **29. SUCCESSORS BOUND**

This Agreement shall be binding on the Parties, their successors and permitted assigns.

## **29A. TIME IS OF THE ESSENCE**

Time shall be of the essence for the purpose of any provision of the Agreement.

## **30. AUTHORISED REPRESENTATIVES**

Any action required or permitted to be taken and any documents required or permitted to be executed under this Agreement, shall be taken or permitted to be executed by the authorized representative of the Parties.

## **31. SURVIVAL**

The terms and provisions contained in this Agreement that by their nature and context are intended to survive the performance thereof by the Parties hereto shall so survive the completion of performance, termination and/or expiration of this Agreement including, but not limited to, provisions on intellectual property rights, indemnification, confidentiality and the making of any and all payments due hereunder.

## **32. BRIBERY, CORRUPTION AND FRAUDULENT ACTS AND INDUCEMENT**

32.1 Each Party hereby represents, warrants and undertakes that it shall comply, and shall procure that its directors, employees, or a person who performs services on behalf of the organization in connection to this Agreement shall comply with the following:

- (a) comply with all applicable laws in Malaysia and, to the extent that it is relevant, any other jurisdiction in respect of bribery, corruption and/or fraudulent acts in the course of performing and/or carrying out its obligations under and/or in connection with this Agreement;
- (b) put in place and implement its own anti-bribery and anti-corruption policies and procedures including adequate measures, controls and accurate records of transactions so as to ensure compliance with such applicable laws; and
- (c) comply with each Party's anti-corruption policy and procedures and/or any other relevant anti-corruption policy and procedures as may be amended from time to time in the course of performing and/or carrying out its obligations under and/or in connection with this Agreement.

32.2 Notwithstanding any provision of this Agreement, either Party shall have the right to terminate this Agreement with immediate effect by written notice to the other Party if:

- (a) any representation or warranty or undertaking in Clause 32.1 above by the other Party is found and/or is known to be untrue or misleading;

- (b) the other Party, its directors, employees, or a person who performs services on behalf of the organization in connection to this Agreement breach of any of the terms set out in this clause; and/or
- (c) the other Party, its directors, employees, or person who performs services on behalf of the Party in connection with this Agreement is found to have committed bribery, corruption and/or fraudulent acts prohibited under the applicable laws in Malaysia and, if applicable, any other jurisdiction in the course of performing and/or carrying out its obligations under and/or in connection with this Agreement

and, the defaulting Party shall be liable for losses, damages, costs and expenses incurred by the other Party as a result of such breach under this clause and/or termination of this Agreement ("Losses"). The defaulting Party shall indemnify and render the other Party harmless from such Losses and to the extent such Losses are actual damages.

### **33. ELECTRONIC SIGNATURE AND DELIVERY OF AGREEMENT VIA ELECTRONIC MEANS (IF APPLICABLE)**

Parties agree that each Party's electronic signatures, whether digital or encrypted, used to execute this Agreement is intended and shall have the same force and effect as manual signatures. Delivery of a copy of this Agreement bearing an original manual signature or electronic or digital signature by electronic mail on Portable Document Format (".pdf") form or other document form shall have the same effect as physical delivery of this Agreement in paper form bearing an original or electronic or digital signature and shall bind the Parties and shall constitute an enforceable and valid agreement.

#### **33A. COMPLIANCE TO LAWS**

Each Party shall perform its obligations in compliance with all relevant legislation, and regulations or other requirements of any relevant government or governmental or regulatory agency (together with the "Rules"). In the event that a change in any of the Rules after the execution of this Agreement directly affects the cost to the Vendor for providing the Works, the Parties shall follow the variation procedure.

### **34. DATA SECURITY AND ENVIRONMENTAL, SOCIAL AND GOVERNANCE**

- 34.1 The Vendor shall comply with the data governance, cybersecurity, information security, data protection and breach rectification requirements set out in **Schedule 5**, including the Information Security Annex, Data Protection Undertaking, site-specific security requirements and any other applicable TM security policies and standards notified to the Vendor from time to time. Such requirements shall form part of the Vendor's obligations under this Agreement and any breach of **Schedule 5** shall be deemed a breach of this Agreement. TM shall be entitled to suspend access, require immediate remediation, withhold acceptance or payment of affected deliverables, and/or exercise any termination or other rights available under this Agreement or at law if the Vendor fails to comply with **Schedule 5**.

- 34.2 Each Party:

- (a) understands the need to follow and implement standard information security protocols pertaining to the security of data information as well as confidential data and information appropriate for its industry. If a Party is not already following and implementing such industry standards, the Party shall establish cyber security safeguards appropriate for the Trial under industry standards and that comply with any applicable laws, rules, regulations of the jurisdiction where the Trial is being performed;
- (b) shall use commercially reasonable efforts to comply with applicable environmental, social and governance (“ESG”) laws and regulations and shall foresee any known or expected future changes in the requirements and take all reasonable actions to ensure compliance. Each Party agrees to respond diligently to requests of information ESG matters received from each other. In case any ESG incident occurs, each Party undertake to each other that such Party shall proactively inform the other as soon as practicable.

#### **34A. ANTI-COMPETE**

- 34A.1 The Parties shall co-operate in order to ensure that their respective performance under this Agreement does not bring about any anti-competitive prohibition within the meaning as provided under the Competition Act 2010 or the Communications and Multimedia Act 1998 or any rules or regulations made in pursuant thereto, as the case may be.
- 34A.2 If any provision of this Agreement is deemed unenforceable due to any anti-competitive restriction pursuant to the operation of the Competition Act 2010 or the Communications and Multimedia Act 1998 or any rules or regulations made in pursuant thereto, the Parties shall in good faith consult with each other to agree an alternative provision which achieves a result as similar as possible to the result which would have been achieved by the provision deemed unenforceable.
- 34A.3 Notwithstanding clause 34A.1 and 34A.2 as aforesaid, if TM has any reason to believe that the Vendor has infringed any of the prohibitions set forth under the Competition Act 2010, TM shall have the absolute right to suspend the Trial and/or terminate this Agreement or have available to it any other remedies available at law or in equity or otherwise.

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**IN WITNESS WHEREOF** the Parties hereto have set their seals the day and year first above written.

## SCHEDULE 1

### DESCRIPTION OF THE TRIAL

The Trial shall relate to the FALCON (Fiber AnaLytics and COgnitive solution) Project, which is intended to develop and validate a predictive and preventive analytics solution for TM's fibre network. The solution may include data ingestion, analytics modelling, risk prediction, heatmap visualisation, dashboard reporting, next-best-action recommendations, workflow tracking, integration with agreed TM systems and pilot validation at agreed sites.

The **POC Stage** shall focus on technical feasibility, model development, data readiness, prototype/MVP functionality and agreed success criteria. The **Pilot Stage**, if approved by TM, shall focus on field validation, operational usability, scalability, user adoption, supportability and readiness for possible future deployment or scale-up.

#### Project Duration and Stage-Gate Structure

| Stage                | Indicative Duration                                                 | Purpose                                                                                               | Remarks                                                                                                                   |
|----------------------|---------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|
| POC Stage            | Three (3) to four (4) months from the Commencement Date             | To co-develop, configure and validate the minimum viable FALCON solution in a controlled environment. | TM may approve progression to Pilot Stage if the POC Success Criteria are achieved and accepted by TM in writing.         |
| Pilot Stage          | Three (3) to four (4) months after TM's written approval to proceed | To validate the FALCON solution in selected operational or field environments.                        | TM may evaluate readiness for possible scale-up, integration or future commercial arrangement under a separate agreement. |
| Total Project Period | Up to twelve (12) months                                            | Innovation validation only.                                                                           | No commitment by TM to procure, deploy, commercialise or scale the FALCON solution unless separately agreed in writing.   |

## SCHEDULE 2

### SCOPE OF POC AND SUCCESS CRITERIA

1. This Schedule 2 sets out the scope of work and success criteria for the FALCON (Fiber AnaLytics and COgnitive solution) Project. The Project is limited to a paid proof of concept and, subject to successful completion of the POC Stage and TM's written approval, a paid Pilot Stage.
2. TM may, acting reasonably and taking into consideration the overall performance of the System/ Solution, technical feasibility, operational benefits, achievement of project objectives, agreed remediation plans and any justified deviation from the specified Success Criteria.
3. The System/ Solution shall operate as a standalone implementation within an isolated environment, supported by basic ecosystems including dashboards, portals, and IoT devices. The objective of the POC is to validate the technical feasibility and operational capabilities of the proposed solution without integration to TM's production systems.
  - A. The System/ Solution shall be capable of validating the predictive model using the designated data sources and automatically triggering the necessary preventive workflows.
    - i. The System/ Solution shall successfully demonstrate an operational ETL (Extract, Transform, Load) pipeline capable of ingesting, validating, transforming, and storing data from the designated data sources to support analytics, predictive modelling, and workflow orchestration.
    - ii. The predictive model shall achieve an overall predictive performance score of **not less than seventy-five percent (75%)**, as measured using Accuracy, Precision, Recall, and F1 Score, with no individual metric falling below the minimum thresholds specified by TM.
    - iii. The System/ Solution shall demonstrate an end-to-end processing and workflow initiation time of **not more than fifteen (15) minutes**, measured from the successful receipt of the triggering event by the platform until the automatic initiation of the corresponding preventive workflow and generation of notifications under normal operating conditions.
  - B. Centralised Management and Remote Operations Capability
    - i. The System/ Solution shall provide a centralised management platform with comprehensive visualisation capabilities, including real-time dashboards, site status monitoring, alerts, incidents, historical trends, and operational activity tracking for all designated POC sites.
    - ii. The System/ Solution shall provide secure remote access to all designated POC sites and support centralised Fault, Configuration, Accounting, Performance, and Security (FCAPS) management functions, including alarm management, configuration administration, performance monitoring, reporting, and security management.
    - iii. The System/ Solution shall demonstrate the ability to remotely monitor and administer all designated POC sites from a central management platform without requiring physical access to the sites under normal operating conditions.
  - C. End-to-End Workflow Monitoring and Orchestration Capability

- i. The System/ Solution shall provide real-time visibility workflow execution, including exceptions, status updates, alerts, activities, and progress tracking from fault detection through to mitigation and resolution.
  - ii. The System/ Solution shall demonstrate an automated closed-loop workflow capability in a controlled and simulated environment, encompassing the end-to-end process of fault detection, risk assessment, preventive or mitigation action initiation, workflow execution, and completion tracking.
  - iii. The System/ Solution shall maintain an auditable history of all workflow activities, decisions, alerts, and status changes for monitoring, reporting, and post-event analysis purposes.
- 4. TM may classify any POC defect as critical, major or minor. Critical defects must be resolved before acceptance. Major defects must be resolved or subject to an agreed remediation plan approved by TM. Minor defects may be accepted subject to documentation and agreed closure timeline. TM's written acceptance shall be conclusive for the purpose of POC completion and progression to the Pilot Stage.

### SCHEDULE 3

#### PAYMENT MILESTONES

The following milestone and payment schedule shall apply to the POC Stage and, if approved by TM in writing, the Pilot Stage.

| No. | Upon Completion and Acceptance of the following Deliverables | Milestone | TM's Proposed Payment Milestone |
|-----|--------------------------------------------------------------|-----------|---------------------------------|
| 1   | Ideation                                                     | M1        | 20%                             |
| 2   | Set-up and Prototyping                                       | M2        | 15%                             |
| 3   | Build MVP (Iteration 1):                                     | M3        | 15%                             |
| 4   | Build MVP: Iteration 2                                       | M4        | 15%                             |
| 5   | Build MVP: Iteration 3                                       | M5        | 15%                             |
| 6   | Pilot / Validate MVP                                         | M6        | 15%                             |
| 7   | Lessons learnt & documentation                               | M7        | 5%                              |

#### Payment Terms:

- All payments are subject to TM's written acceptance of the relevant deliverables and receipt of a valid and undisputed invoice from the Vendor.
- No payment shall be made for incomplete, rejected or non-compliant deliverables unless otherwise approved by TM in writing.
- Pilot Stage payments shall only become payable if TM issues written approval for the Vendor to proceed to the Pilot Stage.
- If the POC Stage is unsuccessful or TM does not approve progression to the Pilot Stage, this Agreement shall end in accordance with the Agreement and TM shall have no obligation to pay any Pilot Fee.
- For clarity, the parties acknowledge that the Equipment cost arrangement under this Agreement is unique to the Trial and is intended only to facilitate the Vendor's procurement of certain Trial-specific Equipment (if any). This arrangement shall not be treated as a general procurement of equipment by TM, nor shall it create any obligation on TM to purchase, retain, own, depreciate, insure, maintain or account for the Equipment as TM's asset.

## SCHEDULE 4

### PILOT KPIS

1. The Pilot Stage shall be deemed completed when the Vendor submits the final pilot report, KPI achievement report, operational readiness assessment, scale-up recommendation, final documentation and knowledge transfer materials, and TM issues written acceptance or closure notice. Nothing in this Schedule 4 obliges TM to proceed with scale-up or commercial deployment.
2. TM may, acting reasonably and taking into consideration the overall performance of the System/ Solution, technical feasibility, operational benefits, achievement of project objectives, agreed remediation plans and any justified deviation from the specified KPI thresholds.
3. The System/ Solution shall be deployed as a standalone implementation across two (2) designated pilot sites located in two (2) different states and shall operate within an isolated environment with supporting ecosystems, including dashboards, portals, and IoT devices. While no integration with TM's production systems is required during the Pilot Stage, the System/ Solution shall demonstrate its capability to be expanded and replicated across additional sites, together with its readiness for future integration through standardised and reusable APIs.
  - A. The System/ Solution shall be capable of validating the predictive model using more diverse and representative data sources from the designated pilot sites and automatically triggering the necessary preventive workflows.
    - i. The System/ Solution shall successfully demonstrate an operational ETL (Extract, Transform, Load) pipeline capable of ingesting, validating, transforming, and storing data from multiple and diverse data sources across all designated pilot sites to support analytics, predictive modelling, and workflow orchestration.
    - ii. The predictive model shall achieve an overall predictive performance score of **not less than eighty percent (80%)**, as measured using Accuracy, Precision, Recall, and F1 Score, with no individual metric falling below the minimum thresholds specified by TM.
    - iii. The System/ Solution shall demonstrate an end-to-end processing and workflow initiation time of **not more than ten (10) minutes**, measured from the successful receipt of the triggering event by the platform until the automatic initiation of the corresponding preventive workflow and generation of notifications under normal operating conditions.
    - iv. The System/ solution shall expose secure and usable Application Programming Interfaces (APIs) to facilitate future integration with TM's systems and shall provide:
      - API specifications and documentation;
      - Authentication and authorisation mechanisms;
      - Sample request and response payloads;
      - Error handling and logging mechanisms.
  - B. Centralised Management and Remote Operations Capability
    - i. The System/ Solution shall provide a centralised management platform with comprehensive visualisation capabilities, including real-time dashboards, site status monitoring, alerts, incidents, historical trends, and operational activity tracking for all designated pilot sites.
    - ii. The System/ Solution shall provide secure remote access to all designated pilot sites and support centralised Fault, Configuration, Accounting, Performance, and Security (FCAPS) management functions, including alarm management, configuration administration, performance monitoring, reporting, and security management.

- iii. The System/ Solution shall demonstrate the ability to remotely monitor and administer all designated pilot sites from a central management platform without requiring physical access to the sites under normal operating conditions.
- iv. The System/ Solution shall demonstrate the capability to centrally manage and monitor multiple geographically distributed sites concurrently.

C. End-to-End Workflow Monitoring and Orchestration Capability

- i. The System/ Solution shall provide real-time visibility of workflow execution, including exceptions, status updates, alerts, activities, and progress tracking from fault detection through to mitigation and resolution across all designated pilot sites.
- ii. The System/ Solution shall demonstrate an automated closed-loop workflow capability in both simulated and actual operating conditions, encompassing the end-to-end process of:
  - fault detection;
  - risk assessment;
  - preventive or mitigation action initiation;
  - workflow execution; and
  - completion tracking.
- iii. The System/ Solution shall maintain an auditable history of all workflow activities, decisions, alerts, and status changes for monitoring, reporting, and post-event analysis purposes.
- iv. The System/ Solution shall demonstrate the capability to support concurrent workflow execution and tracking across multiple pilot sites.

## **SCHEDULE 5**

### **DATA GOVERNANCE AND CYBERSECURITY REQUIREMENTS**

1. In providing the Solution/ System, the Vendor shall at all times comply with all of the following:
  - 1.1 Information Security Annex in Attachment A;
  - 1.2 Data Protection Undertaking in Attachment B;
  - 1.3 All applicable site-specific security requirements relating to premises owned, controlled or occupied by TM, as notified to the Vendor in writing in advance;
  - 1.4 Any other security policies and standards for the time being enforced in TM as notified by TM and shared with the Vendor from time to time.
2. This clause and the relevant appendices shall survive the termination of this Agreement and shall be applicable to the extent where the security of data connected to the Services/Works or the system or platform where such data is kept may potentially be or have been breached.
3. In the event of any potential or actual breach of security of data connected to the Services/Work or the system or platform where such data is kept, is identified or notified by any party, the Vendor shall rectify such breach within the timeline specified in the appendices mentioned herein failing which, TM may take any action as provided in the Agreement or at law.
4. The Vendor further agrees to abide by and maintain adequate data security measures, consistent with industry standards and technology best practices in relation to data security, to protect data from unauthorized disclosure, copy, access, modification or acquisition by an unauthorized person.

**SCHEDULE 6**  
**TRIAL LIAISONS**

**A. TM**

Person in charge from TM (RM or Project Team)

1. [No.] [Name] [Designation] [E-mail]
2. [No.] [Name] [Designation] [E-mail]

**B. THE VENDOR**

Person in charge from Vendor

1. [No.] [Name] [Designation] [E-mail]
2. [No.] [Name] [Designation] [E-mail]

**INFORMATION SECURITY ANNEX (“ISA”)****PART I**  
**GENERAL APPLICABILITY****1. General Principles**

- 1.1 In addition to the general obligations on security requirements as agreed by the Vendor under the Agreement, this ISA shall apply throughout the duration of the Agreement, regardless of whether the Deliverables are procured, supplied, provided and/or performed directly by the Vendor or indirectly via third party distributors.
- 1.2 The measures under this ISA cover different aspects of information security. The extent of its applicability is dependent on the nature of the Deliverables and the scope of work as provided under the Agreement.
- 1.3 The measures prescribed under this ISA may be enforced with additional security measures which will be provided by TM and agreed between the Parties in documents which will be read together as part of the Agreement.

**2. Priority Of Documents**

- 2.1 The Agreement shall prevail over the ISA, unless stated otherwise or a different order of precedence has been set out in the Agreement
- 2.2 However, this ISA shall prevail over Vendor’s documents defining security measures attached to or referenced in the Agreement,; and
- 2.3 All terms written in capital letters shall be interpreted according to the definitions as specified in this ISA.

**3. General Applicability Of ISA**

- 3.1 The Vendor shall comply with the requirements as stated in this ISA for all Deliverables that relate to the following scope of work or deliverables under the Agreement:
  - (i) Software including Software Result;
  - (ii) Hardware;
  - (iii) XaaS/Cloud Services; and
  - (iv) Professional Services.

**4. Timeline**

Whenever any action is to be performed, undertaken, completed or delivered under this ISA, Vendor shall comply with the timeline stipulated in the Agreement, or in this ISA or if not stated anywhere, as soon as practicable, failing which may constitute a material breach of the Agreement which will entitle TM to terminate the Agreement.

## **PART II**

### **GENERAL APPLICABILITY OF SPECIFIC SECTIONS**

5. Part II consist of the following sections:

#### 5.1 List of sections in Part II

|           |                                               |
|-----------|-----------------------------------------------|
| Section A | Contractual and standards compliance          |
| Section B | Security organization                         |
| Section C | Incident management                           |
| Section D | Cryptography and authentication               |
| Section E | Security by design                            |
| Section F | Privacy by design                             |
| Section G | Software Vulnerabilities fixing               |
| Section H | TM Data in XaaS/Cloud Services                |
| Section I | Access control of XaaS/Cloud Services         |
| Section J | Operations of XaaS/Cloud Services             |
| Section K | Access to and use of TM systems and resources |
| Section L | Professionals and security                    |

#### 5.2 Applicability of Part II sections to the type of Deliverables

| <b>SECTIONS</b> | <b>TYPE OF DELIVERABLES</b>             |
|-----------------|-----------------------------------------|
| A               | All types                               |
| B               | All types                               |
| C               | All types                               |
| D               | Software, Hardware, XaaS/Cloud Services |
| E               | Software, Hardware, XaaS/Cloud Services |
| F               | All types                               |
| G               | Software, Hardware, XaaS/Cloud Services |
| H               | XaaS/Cloud Services                     |
| I               | XaaS/Cloud Services                     |
| J               | XaaS/Cloud Services                     |
| K               | Professional Services                   |
| L               | Professional Services                   |

**Table A: Applicability of ISA sections**

### **5.3 Sections**

#### **A CONTRACTUAL AND STANDARDS COMPLIANCE**

### **A.1 Security assessment of Deliverables**

Upon written request by TM, the Vendor shall provide TM within ten (10) working days all necessary information to enable TM to assess the security of Deliverables such as but not limited to security test audit reports, vulnerability scans, secure code review and code robustness analyses.

### **A.2 Security policies**

- (1) The Vendor shall ensure that its enterprise information security policy adopts the best practices under the ISO/IEC 27001 standard or similar industry-recognized practice, such as SOC1 and SOC2 for SaaS providers.
- (2) If the Vendor is certified, the Vendor shall provide TM with a copy of the security certification and keep TM informed of renewals or revocations of the certificates.
- (3) If the Vendor was selected by TM based on a certification (e.g. ISO/IEC 27001), the Vendor shall maintain such certification during the entire contractual period of the Agreement.

### **A.3 Audit**

TM shall have the right to undertake audits to check the Vendor's compliance with TM's security requirements as provided in the Agreement and this ISA.

### **A.4 Third Parties**

Where the Vendor uses third parties in providing the Deliverables to TM, the Vendor shall ensure that such third parties meet the security measures agreed in the Agreement and this ISA.

### **A.5 Network Equipment Security Assurance Scheme (NESAS) Compliance**

- (1) This section A.5 is only applicable to mobile network equipment (meaning equipment for mobile core network, radio access network (RAN) and mobile access).
- (2) The Vendors that offer mobile network equipment must undergo the Network Equipment Security Assurance Scheme (NESAS) vendor development and lifecycle processes assessment, as defined in the respective NESAS specifications, issued by the GSM Association (GSMA PRD FS.13/15/16), in the current version.
- (3) The summary audit report that was produced as a result of the evaluation and completed by a certified auditor must also be provided to TM by the Vendor.
- (4) The assessment must be completed prior to offering any mobile network equipment.

## **A.6 Failure to comply with this ISA**

- (1) Where the Vendor becomes aware of any non-compliance with security measures in relation to its Deliverables, the Vendor shall promptly provide TM with an analysis of the situation and a remediation plan.
- (2) If the remediation plan is accepted by TM, it will be implemented by the Vendor at no cost to TM and the Vendor shall provide TM with proof of the remediation plan's effectiveness.
- (3) If non-compliance persists or such remediation plan is not accepted by TM or fails, this will constitute a material breach of the Agreement which will entitle TM to terminate the Agreement.

## **B SECURITY ORGANIZATION**

### **B.1 Structure**

Upon request of TM, the Vendor shall provide information on its organization's security structure, policy and/or undertakings and requirements.

### **B.2 Point of contact**

The Vendor shall nominate both a contact person for security related matters and an upper-management contact or key-account manager to handle all matters escalated by TM to the Vendor. The contacts shall be provided for each Deliverables and any changes to the person in charge shall be communicated promptly.

### **B.3 Security reviews**

Annually and upon request of either Party, both Parties shall organize a meeting to review security aspects (e.g. evolutions and scheduled operations that may impact security). However, either Party may request for and conduct an exceptional security meeting at any time, upon which the other Party shall participate promptly and cooperate fully where the situation requires a common analysis or immediate decision (for example a major incident or a significant evolution of threats).

### **B.4 Security measure for TM data**

- (1) TM data includes TM's propriety business information (such as but not limited to contracts or business plans) or technical information (such as network diagrams, credentials, or secret keys).
- (2) The Vendor shall implement the following measures to any of TM data shared with the Vendor which is classified as confidential by TM, i.e. data encrypted by TM and/or marked as Confidential:

- (i) encrypt TM data whenever the same is stored and/or transmitted; and
  - (ii) implement a strong authentication system (e.g. two-factor authentication system).
- (3) The Parties shall agree in advance on a method of exchange in the event there is a need to exchange encrypted information.

## **C INCIDENT MANAGEMENT**

### **C.1 Detection**

The Vendor shall have measures in place to detect security incidents impacting TM and occurring in the Vendor's environment. Security incidents include but are not limited to loss, alteration, disclosure or unauthorized access to TM data, TM's customer data or information and unauthorized disclosure of proprietary source code.

### **C.2 Notification**

- (1) The Vendor shall promptly notify TM in case of any such security incident.
- (2) Where breach and/or misappropriation of TM's data, TM's customer data or information is identified, the Vendor shall notify TM immediately or promptly in accordance with applicable laws or as agreed in the Agreement (whichever is the earlier) from the time the Vendor becomes aware of, or ought to have been aware of, such breach and/or misappropriation.
- (3) Details and root cause analysis of security incidents shall be provided by the Vendor within forty eight (48) hours from the time the Vendor becomes aware of, or ought to have been aware of, such breach and/or misappropriation and shall cooperate with authorities and 3<sup>rd</sup> parties identified by TM for compromise assessment.

### **C.3 Escalation and Resolution**

- (1) The Vendor shall respond and resolve security incidents whether through its own or upon escalation from TM, and inform TM of the progress and end-of-incident based on security incident resolution service level agreement of the following table B:

| <b>Priority Level</b> | <b>Acknowledgement Time</b> | <b>Resolution Time</b> | <b>Update Frequency</b> | <b>Root Cause Analysis Report Submission to TM</b> |
|-----------------------|-----------------------------|------------------------|-------------------------|----------------------------------------------------|
|                       |                             |                        |                         |                                                    |

|                          |            |          |         |                  |
|--------------------------|------------|----------|---------|------------------|
| <b>P1<br/>(Critical)</b> | 15 minutes | 4 hours  | 1 hour  | 10 calendar days |
| <b>P2<br/>(High)</b>     | 30 minutes | 8 hours  | 1 hour  | 10 calendar days |
| <b>P3<br/>(Major)</b>    | 1 hour     | 24 hours | 4 hours | 10 calendar days |
| <b>P4<br/>(Minor)</b>    | 1 hour     | 72 hours | 8 hours | 10 calendar days |

**Table B: Security Incident Resolution Service Level Agreement**

- (2) If the Vendor fails to respond and resolve within such timeline as may be stipulated in the Agreement or, if no such timeline is provided in the Agreement, as per the Table B, the liquidated damages shall be calculated following the formula as stated in section G.8.

#### **C.4 Suspension of Vendor access to TM systems**

- (1) This section C.4 is applicable to Professional Services.
- (2) In the event of a security incident resulting from the performance or the execution of Professional Services, TM may suspend Vendor from further accessing to TM systems until the incident is resolved.

#### **C.5 Suspension of TM access to XaaS/Cloud Services**

- (1) This section C.5 is only applicable to XaaS/Cloud Services.
- (2) In the event of a security incident affecting the XaaS/Cloud Services (e.g. system intrusion, malware incident), TM may suspend its own access to the said Service until the incident is resolved.
- (3) In the event where TM is not able to suspend its own access, TM shall explicitly request the Vendor to suspend all TM access until the incident is resolved. Vendor shall promptly comply with such request.

#### **C.6 Security report for XaaS/Cloud Services and Professional Services**

- (1) This section C.6 is only applicable to XaaS/Cloud Services and Professional Services.
- (2) TM may request from the Vendor a security report related to the XaaS/Cloud Services and/or Professional Services not more than twice a year. This security report shall include but is not limited to the following information:
  - (i) the number of security incidents detected over the last twelve (12) months, highlighting both internal and external causes if relevant; and

- (ii) details of security incidents over the period (detection time, nature and impact, resolution, service recovery time, closing time, time for resolution).

## **D CRYPTOGRAPHY AND AUTHENTICATION**

### **D.1 Modification of authentication data and cryptographic keys by TM**

- (1) All authentication data and cryptographic keys (e.g. certificates, key pairs, symmetric keys, passwords) in Software and Hardware Deliverables shall be modifiable by TM and protected according to state-of-art.
- (2) For authentication data and cryptographic keys that are not modifiable by TM, Vendor shall provide a list of such data and their purpose to TM. For XaaS/Cloud Services, this requirement applies only to authentication data used by TM for protecting its data including administrative accounts.

### **D.2 Strength of cryptographic algorithms and keys**

The Vendor shall implement only standardised cryptographic algorithms recommended by governmental institutions (such as NACSA and NIST) enforceable at the time when the Agreement is agreed or renewed.

## **E SECURITY BY DESIGN**

### **E.1 Hardening**

- (1) The Vendor shall employ system hardening best practices in compliance with TM's hardening requirements and guidelines. This includes restricting protocol access, removing or disabling unnecessary software, network ports and services, removing unnecessary files, user accounts, restricting file permissions, patch management and logging.
- (2) The Vendor shall provide Deliverables (including third party components and services) that are securely configured by default according to state-of-the-art security configuration practices (such as the configuration practice prescribed under <https://www.cisecurity.org/>).
- (3) Notwithstanding the above, the Vendor shall provide TM with all necessary information to securely configure and use Deliverables and shall ensure that such information is always up-to-date during the duration of the Agreement.
- (4) In addition, the Vendor shall ensure that Deliverables do not contain any Back Doors.

### **E.2 Testing for software security errors**

The Vendor shall test the Deliverables to ensure that they are free of dangerous software errors listed in “**CWE/SANS Top 25**” (<http://cwe.mitre.org>) and “**OWASP TOP 10**” (<http://www.owasp.org>) at the delivery date (e.g. robustness against unexpected inputs such as SQL Injection, predictable behaviour in overload situations, etc.).

### **E.3 Least privilege**

The Deliverables shall apply principles of least privilege and provide granular user access controls based on roles (RBAC), attribute (ABAC) and permission (PBAC)<sup>1</sup> on access and modifications to TM data and TM’s customer data.

### **E.4 Multi-factor Authentication (MFA)**

- (1) The Deliverables shall apply MFA by default for all admin and user access controls.
- (2) The Deliverables shall integrate with TM's Single-Sign-On Identity Provider enabled with Multi-Factor-Authentication using Security Assertion Markup Language (SAML) 2.0 protocol for all users’ accesses (admin, normal user, reseller, sales agent, developer, third-party, etc.).

### **E.5 Remote Access**

- (1) The Vendor shall apply secure remote access for system administration of TM assets. (e.g SSLVPN, Jumhost and SASE<sup>2</sup>).
- (2) Any system administrative role access from outside Malaysia, shall be declared and shall require express written approval from TM.

### **E.6 Asset and Software Inventory**

- (1) The Vendor shall document and declare comprehensive bill of material and software for TM’s inventory.
- (2) The Vendor shall ensure the supplied material and software shall be free of known security vulnerabilities.

### **E.7 NTP and DNS**

The Vendor shall configure NTP synchronization and DNS resolution on all the application servers and devices using TM NTP/DNS Servers or authorized NTP/DNS servers.

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<sup>1</sup> Note:

- RBAC : Role-Based Access Control
- ABAC : Attribute-Based Access Control
- PBAC : Permission-Based Access Control

<sup>2</sup> SASE: Secure Access Secure Edge

## **E.8 Standard Operating System**

- (1) A standard operating system (OS) is defined as operating systems with the following criteria:
  - (i) Fully compatible with TM's existing infrastructure, applications and security controls,
  - (ii) Well-supported by the OS vendor with large community of developers,
  - (iii) Having strong technical support, security track record and regularly updated with improvements, new features, security updates and security patches, and
  - (iv) Availability of enterprise support from the OS vendor with extended support options.
- (2) The Vendor shall deploy all applications, services and/or infrastructure component on standard operating systems.
- (3) Any use of non-standard operating system shall be with strong justification with exception for virtual appliances.

## **E.9 Additional measures**

- (1) Upon request from TM, the Parties shall discuss and mutually agree on additional security measures that any or all of the Deliverables must satisfy.
- (2) These additional measures shall be compiled in a document called "Security Statement of Compliance" and be included as part of the Agreement.

## **F. PRIVACY BY DESIGN**

### **F.1 Data minimization**

The Vendor shall ensure that any Personally Identifiable Information (PII) required are minimized and on need to know basis.

### **F.2 Data protection**

Vendor shall ensure that PII data contained in Deliverables are hidden by use of masking, de-identified algorithm, encrypted or equivalent, while in transit, at rest and during processing. The processing of PII shall be undertaken in a distributed fashion whenever possible.

### **F.3 Additional measures**

- (1) Upon request from TM, the Parties shall discuss and mutually agree on additional privacy measures that any or all of the Deliverables must satisfy.
- (2) These additional measures shall be compiled in a document called “Privacy Statement of Compliance” and be included as part of the Agreement

## **G SOFTWARE VULNERABILITIES FIXING**

### **G.1 Detection**

The Vendor shall provide measures to track third party code dependencies and to continuously monitor external security advisory sources (such as cooperative security tests, external security research, open source and third party vulnerability disclosure, etc.) and mitigate Vulnerabilities that could impact the Deliverables (including third party components). Upon request from TM, the Vendor shall provide TM within ten (10) working days all necessary information to review these measures.

### **G.2 Vulnerability Management**

Each vulnerability detected by the Vendor shall have a unique identifier (e.g. CVE identifier associated with a CVSS score (v3 or higher) consisting of the CVSS base, the temporal score and the vector ID.)

### **G.3 Notifications**

- (1) The Vendor shall promptly provide information to TM about each Vulnerability (with CVSS score greater or equal than 7.0) including Zero-Day impacting the Deliverables and its consequences (e.g. CVE if exists, CVSS score, affected components or services).
- (2) The Vendor shall communicate security advisories in cvrf/xml or any other parsable format via email to “GROUP INFORMATION SECURITY TM”

### **G.4 Service level agreement to fix Vulnerabilities**

- (1) For each Vulnerability impacting the Deliverables, the Vendor shall:
  - (i) make all efforts to provide a Temporary Fix to TM according to the timeline as stipulated in the Agreement, or if no such timeline is stipulated in the Agreement, according to the following table C; and
  - (ii) make the Official Fix available to TM according to the timeline as stipulated in the Agreement, or if no such timeline is stipulated in the Agreement, according to the following table C.

| CVSS base score v3         | Maximum time to provide TM with a Temporary Fix <sup>3</sup> | Maximum time to provide TM with the Official Fix |
|----------------------------|--------------------------------------------------------------|--------------------------------------------------|
| <b>9.0-10.0 (Critical)</b> | 72 hours                                                     | 14 calendar days                                 |
| <b>7.0-8.9 (High)</b>      | 72 hours                                                     | 30 calendar days                                 |
| <b>4.0-6.9 (Medium)</b>    | 7 calendar days                                              | 60 calendar days                                 |
| <b>0.1-3.9 (Low)</b>       | 30 calendar days                                             | 90 calendar days                                 |

**Table C: Vulnerability Fixing Service Level Agreement**

- (2) The time referred to in Table C commences upon detection of the Vulnerability, except for a Vulnerability located on third party components where the time commences upon availability of a fix.

#### **G.5 Security maintenance of third party components**

The Vendor shall ensure that third party components used within the Deliverables are security maintained during service or maintenance period as stipulated in the Agreement.

#### **G.6 Vulnerability Remediation**

- (1) The Vendor shall fix vulnerability impacting the deliverables during the contract period of the Agreement upon discovery or upon request by TM.
- (2) Timeline to fix such vulnerabilities shall be as detailed out in Section G.4.

#### **G.7 Exceptions**

- (1) The Vendor shall employ commercially reasonable efforts to support TM to fix Vulnerabilities:
- (i) in occasions requiring a faster response than the Agreement, or if no such timeline is stipulated in the Agreement, following the above table C (e.g. press publication of Vulnerability in a Deliverable used by TM); and
  - (ii) in the technical environment necessary to operate the Deliverables (e.g. operating system for a Software Deliverable).

#### **G.8 Liquidated Damages for Vulnerability fixes and Security Incident Resolution**

<sup>3</sup> Temporary Fix includes by not limited to termination/isolation of vulnerable service, applying configuration changes, enforcing stricter network firewall policy, applying blocking signature at web application firewall and endpoint policies.

- (1) In addition to the remedies as a consequence of a material breach as set out in section A.6, in the event of failure to comply with this ISA, TM may apply liquidated damages to the Vendor as per the sections “Liquidated Damages” of the Agreement.
- (2) In case of Vulnerabilities or Security Incident resolution, the following liquidated damages scheme shall apply:

If the Vendor fails to provide a security Temporary Fix and Official Fix for Vulnerabilities or to resolve Security Incident within such timeline as may be stipulated in the Agreement or, if no such timeline is provided in the Agreement, as per the table defined in section G.4, the liquidated damages shall be calculated as follows:

$$A = V \times N / 240$$

A: amount of liquidated damages.

V: V is the value of the Deliverables.

N: number of calendar days exceeding the Temporary Fix and Official Fix or Security Incident Resolution deadline.

## **G.9 Security-related maintenance**

- (1) During the maintenance and/or warranty period under the Agreement, the Vendor shall provide to TM the following:
  - (i) Software and Hardware Deliverables and future releases with all security fixes.
  - (ii) security fixes as and when they are released, respecting the Vulnerability fix times as stipulated in the Agreement or, if no such timeline is provided in the Agreement, as defined in section G.4.
- (2) The Vendor shall provide information (e.g. CVE, CVSS score) to TM on the Vulnerabilities that have been fixed.

## **H TM DATA IN XAAS/CLOUD SERVICES**

### **H.1 Limitation of use of TM data**

The Vendor shall use TM data transmitted, processed, generated and/or stored in the XaaS/Cloud Service only to provide the said Service.

### **H.2 Segregation of TM data**

The Vendor shall enforce segregation of TM data from data of Vendor's other customers..

### **H.3 TM confidential data**

The Vendor shall encrypt all data that is classified by TM as confidential and stored in Vendor's XaaS/Cloud Service in/during transit and in storage.

### **H.4 Vendor encryption mechanisms**

Where TM uses an encryption mechanism provided by the Vendor to protect TM data and TM's customer data, the Vendor shall ensure that:

- (i) such data shall be kept encrypted when stored and transmitted; and
- (ii) a strong authentication (e.g. two-factor authentication) is used for access to such data.

### **H.5 Logging of TM data access and use**

- (1) The Vendor shall:
  - (i) log access to and usage of TM data and TM's customer data in the XaaS/Cloud Service, including by its employees and any appointed third parties; and
  - (ii) category of logs includes access logs, business event logs and audit logs for security threat and fraud monitoring and detection.
  - (iii) real-time logs are required for monitoring of security threat and fraud, by integration to TM's SIEM, analytics console or equivalent.
  - (iv) retain such logs for the duration as agreed in the Agreement including associated documents (e.g. Non-Disclosure Agreement or Data Processing Agreement), or six (6) months by default.
- (2) Extracts of retained logs shall be provided to TM on request.

### **H.6 TM Data reversibility**

- (1) Upon termination of the Agreement, the Vendor shall make available to TM for retrieval, all TM data in the XaaS/Cloud Service in an agreed format and for a period of time mutually agreed beforehand with TM ("Data Reversibility Period").
- (2) As per sections D.2 and H.4, only encrypted connections shall be used for TM retrieval of data unless exception is given and agreed in writing by TM.
- (3) At the end of the Data Reversibility Period, the Vendor shall promptly proceed with a secure wipe in the XaaS/Cloud Service in order to irreversibly destroy TM environments and TM data. .

- (4) The Vendor shall provide TM with a certification of destruction within a timeline as agreed in the Agreement, or if not stipulated anywhere, within thirty (30) days from the end of Data Reversibility Period.

## **H.7 API Security**

Any API implementation shall comply with API security guidelines as per TM GIS Web, Mobile and API application security Guideline, to ensure that they are free of dangerous API errors listed in “OWASP API SECURITY TOP 10” (<https://owasp.org/www-project-api-security/>) at the delivery date.

## **I ACCESS CONTROL OF XAAS/CLOUD SERVICES**

### **I.1 Physical security**

- (1) The Vendor shall provide physically secured facilities for both production cloud infrastructure and locations for remote operations.
- (2) Controls shall include at least:
  - (i) physical access with prior authorization and is consistently monitored;
  - (ii) everyone must visibly wear official identification while onsite;
  - (iii) visitors must sign a visitor’s register and be escorted and/or observed when on the premises; and
  - (iv) possession of keys/access cards and the ability to access the locations is monitored. Staff leaving Vendor employment must return keys/cards.

### **I.2 System access control and password management**

- (1) The Vendor shall control the Service systems by restricting access to only authorized personnel.
- (2) The Vendor shall enforce password policies on infrastructure components and cloud management systems used to operate the Vendor Service environment. The Vendor shall protect passwords using secure mechanisms such as digital vault.
- (3) The Vendor shall implement system access control, and accounting designed to ensure that only approved operations and support employees have access to the systems. System access control shall include system authentication, authorization, access approval, provisioning, and revocation for employees and any other Vendor-defined ‘users’.

### **I.3 Review of access rights**

- (1) Network and operating system accounts for Vendor employees shall be reviewed regularly to ensure appropriate employee access levels.
- (2) In the event of Vendor employee's leaving the project under the Agreement, the Vendor shall take prompt actions to terminate network, telephony, and physical access for such employees.

### **I.4 Security Gateway**

- (1) The Vendor shall utilize security gateways (e.g. firewalls, routers, proxies, reverse proxies) to control access between the internet and Vendor Services by allowing only authorized traffic.
- (2) Vendor managed security gateways shall be deployed to perform packet inspection with security policies configured to filter packets based on protocol, port, source, and destination IP address, as appropriate, in order to identify authorized sources, destinations, and traffic types.

### **I.5 Anti-malware controls**

The Vendor shall employ anti-malware software, including XDR, to scan uploaded files and detect anomalous file behaviours. Malware definitions shall be updated at least daily.

### **I.6 Encryption and remote connections to XaaS/Cloud Services**

- (1) For TM access to and use of a XaaS/Cloud Service, only encrypted connections must be used unless exception has been agreed in writing by TM.
- (2) The Vendor shall ensure that only authenticated and encrypted connections are used for third parties acting on behalf of the Vendor accessing remotely TM data processed and/or stored in a XaaS/Cloud Service.
- (3) In all cases, the latest available browsers must be supported for connecting to XaaS/Cloud Services.

## **J OPERATIONS OF XAAS/CLOUD SERVICES**

### **J.1 Penetration tests**

- (1) The Vendor shall assess the security of the XaaS/Cloud Service using penetration tests at least on a yearly basis. The report and mitigation plan of such tests shall be shared with TM.

- (2) Notwithstanding the above, the Vendor shall allow TM to make XaaS/Cloud Service penetration tests on its production environment.

## **J.2 Production data and environments**

- (1) The Vendor shall not use production data for testing activities.
- (2) The Vendor shall separate development, testing and production environments (e.g. networks, data, applications, etc.).

## **J.3 Disaster recovery plan**

- (1) The Vendor shall set up and maintain a disaster recovery plan and ensure that it is tested at regular intervals, at least annually.
- (2) Backups will be securely deleted by the Vendor upon disposal.

## **J.4 Security-related maintenance**

For any security patch that the Vendor intends to deploy on the XaaS/Cloud Service, the Vendor shall apply and test the security patch on a testing environment. Only after successful completion of testing on such environment, the Vendor will deploy the patch on the production environment.

## **J.5 Third Party services**

The Vendor shall inform TM if third party services (e.g. data center services) are involved or planned to be involved in the provision of the service.

## **J.6 Relocation of data**

The Vendor shall inform TM if TM data is to be relocated to another data center (including backups) other than the data center as agreed in the Agreement.

# **K ACCESS TO AND USE OF TM SYSTEMS AND RESOURCES**

This section K will be applicable only if TM grants the Vendor access to and use of TM systems for the performance of the Agreement.

## **K.1 Physical**

If TM provides access and/or interconnection equipment installed on Vendor premises, the Vendor shall ensure that:

- (1) physical access control is applied to the technical area where such equipment is located; and

- (2) physical access to such equipment is limited to those who need to access the equipment for the performance of the Agreement and duly authorised by the Vendor.

## **K.2 TM Systems**

- (1) The Vendor shall:
  - (i) access and use TM's systems only to provide the Deliverables;
  - (ii) ensure that access and data transfer are not used to perform an attack (e.g. for data transfer, check for malware);
  - (iii) comply with the means of access and rules defined by TM and provided to the Vendor beforehand (e.g. respect network addresses assigned by TM, respect TM responsive times for TM management Resources, etc.);
  - (iv) ensure that anybody acting on behalf of the Vendor who needs to use TM systems is duly authorised by the Vendor and identification information has been provided to TM beforehand; and
  - (v) ensure that only duly authorised Vendor Resources are connected with TM systems.

## **K.3 Vendor Resources**

- (1) If Vendor Resources are used to access and/or interconnect with TM systems, the Vendor shall:
  - (i) follow security best practices on management of such Vendor Resources (e.g. keep such Vendor Resources up-to-date with the latest security patches such as anti-malware software and operating systems patches and installed software, configure restricted privileges for users, configure restricted execution rights on removable media, implement mechanisms for session-locking on such Vendor Resources after a short period of inactivity, etc.);
  - (ii) ensure the Vendor Resources (including authentication tokens, mobile devices and the phone numbers associated) are dedicated to the Vendor and only used by its employees and any third parties appointed to provide the Deliverables);
  - (iii) implement network access control on the Vendor Resources used for the performance of Services;

- (iv) implement a strong authentication system (e.g. two-factor authentication) for access to such Vendor Resources; and ensure traceability of usage of such Vendor Resources by all users;
  - (v) retain logs for the duration as agreed in Agreement including associated documents (e.g. Non-Disclosure Agreement or Data Processing Agreement), or 6 months by default; and
  - (vi) provide to TM upon request, extracts of retained logs.
- (2) If TM provides accounts to the Vendor, the Vendor shall:
- (i) ensure traceability of account attribution and use;
  - (ii) retain traces for the duration as agreed in Agreement including associated documents (e.g. Non-Disclosure Agreement or Data Processing Agreement), or 6 months by default; and
  - (iii) provide to TM upon request, extracts of retained traces.

#### **K.4 TM systems and applications**

- (1) If TM provides accounts to the Vendor, the Vendor shall:
- (i) promptly notify TM when an account is no longer required; and
  - (ii) ensure that accounts provided for server communications are used only for that purpose.

#### **K.5 Management of TM Resources**

If TM provides TM Resources (software, hardware, computers, USB stick, badge, tablet, smartphone, access or interconnection equipment, etc.) to the Vendor, the Vendor shall keep track of such TM Resources. Upon termination of the Agreement, the Vendor shall return TM Resources still in its possession.

### **L PROFESSIONALS AND SECURITY**

#### **L.1 Awareness training and education**

- (1) The Vendor shall ensure that its employees and any third parties appointed to provide the Deliverables:
- (i) possess appropriate security skills (e.g. to manage security incidents); and

- (ii) are familiar with the content and the implementation of applicable security rules.

## **L.2 TM specific security rules**

If TM provides specific security rules for performing the Professional Services, the Vendor shall ensure that its employees and any appointed third parties are informed of such rules before the start of any tasks.

## **L.3 Subcontractors**

Where the Vendor uses subcontractors to fulfil the security obligations under the Agreement with TM, the Vendor shall specifically identify them as subcontractors and ensure that the same standard of care will be imposed on the subcontractors.

## **L.4 Handling of sensitive Deliverables**

The Vendor shall use only security checked personnel, i.e. screened by national authorities, for handling of sensitive Deliverables prior to deployment in TM Network, as well as for maintenance of sensitive Deliverables during the Agreement period.

# **PART III DEFINITIONS AND ABBREVIATIONS**

|                     |                                                                                                                                                                                                                                                                     |
|---------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Agreement</b>    | means any contract signed by TM with the Vendor, including any purchase order issued by TM to the Vendor containing the reference to this ISA.                                                                                                                      |
| <b>Assets</b>       | encompass primary and supporting assets as defined in ISO/IEC 27005.                                                                                                                                                                                                |
| <b>Back Door</b>    | means a feature or defect of Deliverables that allows surreptitious unauthorized access to data.                                                                                                                                                                    |
| <b>CVE</b>          | means Common Vulnerabilities and Exposures as defined in: <a href="http://cve.mitre.org/index.html">http://cve.mitre.org/index.html</a> .                                                                                                                           |
| <b>CVSS</b>         | means Common Vulnerability Scoring System as defined in <a href="http://www.first.org/cvss/">http://www.first.org/cvss/</a> .                                                                                                                                       |
| <b>Defect</b>       | means any deviation of the actual quality of the Deliverable from the contractually intended quality, e.g. default, non-compliance of the Deliverables with their corresponding specification or their failure to perform in accordance with related documentation. |
| <b>Deliverables</b> | mean all equipment(s), product(s) and service(s) which are to be supplied, provided, performed and/or sold by the Vendor to                                                                                                                                         |

|                                |                                                                                                                                                                                                                                                                                                                                                                                                                              |
|--------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                | TM pursuant to the Agreement including all main and ancillary obligations.                                                                                                                                                                                                                                                                                                                                                   |
| <b>Hardware</b>                | Means any computer and related devices and equipment that includes but is not limited to any embedded software/firmware (e.g. end-user equipment and devices for Internet of Things, IT equipment, etc.;                                                                                                                                                                                                                     |
| <b>Information Security</b>    | means – in compliance with ISO/IEC 27001 and ISO/IEC 27005 - security in the scope of information processing and activities (primary assets) relying on technical (including, but not limited to IT, premises, facilities, networks) and non-technical resources (including, but not limited to supporting assets such as staff, partners, organizations, procedures, terms and conditions).                                 |
| <b>Internet of Things</b>      | means any connected devices or equipment for internet of things                                                                                                                                                                                                                                                                                                                                                              |
| <b>Official Fix</b>            | means that a complete Vendor solution is available to fix a Vulnerability, either by means of an official patch or an upgrade.                                                                                                                                                                                                                                                                                               |
| <b>Professional Services</b>   | means any work(s) in performing installation, training, integration, maintenance and/or consulting.                                                                                                                                                                                                                                                                                                                          |
| <b>Software</b>                | refers to off-the-shelf vendor software and/or custom software as specified and described in the Agreement and/or Statement of Work agreed by the Parties (such as but not limited to e.g. Software Result);                                                                                                                                                                                                                 |
| <b>Software Result</b>         | means any software that is:<br>(i) primarily based on and/or directed to the TM's requirements and/or specifications provided by or exclusively for TM; and/ or<br>(ii) developed or implemented by Vendor under the Agreement (and/or any subsequent amendments), and which is not a background;<br>which may or may not be protected by intellectual property rights, as well as any product or process resulting from it. |
| <b>Statement of Compliance</b> | means an exhibit of Agreement with detailed technical security requirements on Deliverables.                                                                                                                                                                                                                                                                                                                                 |
| <b>Statement of Work (SoW)</b> | means a document defining project-specific activities, deliverables and timelines for the Vendor providing Deliverables and/or Services to TM.                                                                                                                                                                                                                                                                               |
| <b>Vendor</b>                  | Refers to the service provider that provides the Deliverables to TM pursuant to the Agreement including all main and ancillary obligations.                                                                                                                                                                                                                                                                                  |

|                         |                                                                                                                                                                                                                                                                                                                                                          |
|-------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Vendor Resources</b> | means hardware, software belonging to and/or under liability of Vendor and used for the purpose of providing the Deliverables.                                                                                                                                                                                                                           |
| <b>Temporary Fix</b>    | Includes but not limited to termination/isolation of vulnerable service, applying configuration changes, enforcing stricter network firewall policy, applying blocking signature at web application firewall and endpoint policies.                                                                                                                      |
| <b>TM Network</b>       | means the network managed by TM and all related TM Network infrastructures.                                                                                                                                                                                                                                                                              |
| <b>TM Resources</b>     | means hardware, software, services belonging to TM and used for the purpose of providing the Deliverables.                                                                                                                                                                                                                                               |
| <b>Vulnerability</b>    | means a weakness that reduces availability, integrity or confidentiality.                                                                                                                                                                                                                                                                                |
| <b>XaaS</b>             | means anything delivered to users as a service including SaaS (Software as a Service), PaaS (Platform as a Service), IaaS (Infrastructure as a Service) or similar.                                                                                                                                                                                      |
| <b>Zero-Day</b>         | means an undisclosed vulnerability that hackers can exploit to adversely affect Deliverables. It is known as a "zero-day" (or "zero-hour" or "0-day" or "day zero") because it is not publicly reported or announced before becoming active, leaving the Vendor with zero days in which to create patches or advise workarounds to mitigate its actions. |

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## DATA PROTECTION UNDERTAKING (“Undertaking”)

In consideration of the Agreement executed with **TM TECHNOLOGY SERVICES SDN. BHD. [Company No.: 200201003726 (571389-H)]**, a company incorporated under the laws of Malaysia and having its registered address at Level 51, North Wing, Menara TM, Jalan Pantai Baharu, 50672 Kuala Lumpur (“Company”), **[Name and Co. No. of the Vendor]** (“Vendor”) hereby represents, warrants and covenants as follows:

### 1. DEFINITIONS

- 1.1. “Personal Information” shall be as defined in the Personal Data Protection Act 2010
- 1.2. “Process” or “Processing” means with regard to Company Personal Information or Company Sensitive Personal Information, collecting, recording, holding or storing the Personal Information, or carrying out any operation or set of operations on the Personal Information, including (a) organization, adaptation or alteration, (b) retrieval, consultation or use, (c) disclosure by transmission, transfer, dissemination or otherwise making available, or (d) alignment, combination, correction, erasure or destruction; or otherwise defined in the data privacy laws as applicable to each Party’s business.
- 1.3. “Sensitive Personal Information” shall be as defined in the Personal Data Protection Act 2010.

### 2. PRIVACY, CONFIDENTIALITY AND INFORMATION SECURITY

#### 2.1. Authority to Process Personal Information

- i) Vendor shall Process Personal Information only on behalf of and for the benefit of the Company, for the purposes of Processing Personal Information in connection with the Agreement, and to carry out its obligations pursuant to the Agreement and the Company’s written instructions.
- ii) The Company shall have the exclusive authority to determine the purposes for and means of Processing Personal Information

#### 2.2. Disclosure of and Access to Personal Information

- i) Vendor and its Personnel shall hold in strict confidence any and all Personal Information.
- ii) Vendor shall limit access to Personal Information to its Personnel who have a need to know the Personal Information as a condition to Vendor’s performance of services for or on behalf of the Company.
- iii) Where Vendor shares, transfers, discloses or otherwise provides access to any Personal Information to any third party or contracts any of its rights or obligations concerning Personal Information, Vendor shall enter into a written contract with each contractor or third party that imposes obligations on the contractor or third party that are substantially similar to those imposed on Vendor under this Undertaking.

- iv) Where applicable, Vendor shall only retain contractors that Vendor can reasonably expect to appropriately protect the privacy, confidentiality and security of the Personal Information.
- v) Vendor shall not transfer Personal Information outside Malaysia without the explicit written consent of the Company.
- vi) Vendor shall respond to any requests with respect to Personal Information received from the Company's customers, consumers, employees or others in accordance with the Company's reasonable instructions for the purposes of the Services. Subject to the foregoing, Vendor shall cooperate with the Company if an individual requests access to his or her Personal Information for any reason.
- vii) Vendor shall notify the Company promptly in writing of any subpoena or other judicial or administrative order by a government authority or proceeding seeking access to or disclosure of Personal Information. The Company shall have the right to defend such action in lieu of and on behalf of Vendor. The Company may, if it so chooses, seek a protective order. Vendor shall reasonably cooperate with the Company in such defense.

### 2.3. Compliance with Privacy and Information Security Requirements

Vendor shall comply with applicable laws, regulations and industry standards as applicable to Vendor's business and in its capacity as a data processor relating to the privacy, confidentiality or security of Personal Information (collectively, "Privacy Laws").

### 2.4. Personal Information Safeguards

- i) Vendor shall maintain reasonable safeguards and other security measures designed to (i) ensure the security and confidentiality of Personal Information; (ii) protect against any anticipated threats or hazards to the security and integrity of Personal Information; and (iii) protect against any actual unauthorized Processing, loss, use, disclosure or acquisition of or access to any Personal Information as transmitted, stored or otherwise processed by Vendor (hereinafter "Information Security Incident").
- ii) Vendor shall promptly inform the Company in writing of any Information Security Incident of which Vendor becomes aware, but in no case longer than 2 hours after it becomes aware of the Information Security Incident. Such notice shall summarize in reasonable detail the effect on the Company, if known, of the Information Security Incident and the corrective action taken or to be taken by Vendor. Vendor shall promptly take all necessary and advisable corrective actions, and shall cooperate fully with the Company in all reasonable and lawful efforts to prevent, mitigate or rectify such Information Security Incident. The content of any filings, communications, notices, press releases or reports related to any Information Security Incident must be approved by the Company prior to any publication or communication thereof.
- iii) Promptly upon the expiration or earlier termination of the Agreement, or such earlier time as the Company requests, Vendor shall return to the Company or its designee, or at the Company's request, securely destroy or render unreadable or undecipherable if return is not reasonably feasible or desirable

to the Company (which decision shall be based solely on the Company's written statement), each and every original and copy in every media of all Personal Information in Vendor's possession, custody or control. In the event applicable law does not permit Vendor to comply with the delivery or destruction of the Personal Information, Vendor warrants that it shall ensure the confidentiality of the Personal Information and that it shall not use or disclose any Personal Information after termination of the Agreement.

#### 2.5. Injunctive Relief

Vendor agrees that any Processing of Personal Information in violation of this Undertaking, the Company's instructions or any applicable Privacy Law, or any Information Security Incident, may cause immediate and irreparable harm to the Company for which money damages may not constitute an adequate remedy. Therefore, Vendor agrees that the Company may obtain specific performance and injunctive or other equitable relief for any such violation or incident, in addition to its remedies at law, without proof of actual damages. Vendor agrees to waive any requirement for the securing or posting of any bond in connection with such remedy.

### 3. INDEMNIFICATION

Subject to the limitation of liability as set out in clause 16 of the Agreement, Vendor agrees to indemnify and hold harmless the Company and its officers, employees, directors and agents from third party claims to the extent that such claims arise directly from the violation of mutually agreed Client Data Protection protocols through the negligence, gross negligence, bad faith, or intentional or willful misconduct of Vendor or its Personnel.

### 4. MISCELLANEOUS

- 4.1. This Undertaking is governed by Malaysian law and shall not be assigned without the Company's prior written consent.
- 4.2. Vendor agrees that this Undertaking will be binding upon Vendor's servants, agents, personal representatives, assigns and successor at law; and will inure to the benefit of Company and its successors and assigns.
- 4.3. Vendor's obligations under this Undertaking shall survive the termination of the Agreement and the completion of all services subject thereto.
- 4.4. No delay or omission by Company in exercising any right under this Undertaking will operate as a waiver of that or any other right.
- 4.5. This Undertaking supersedes all prior representations, negotiations, arrangements, understandings or Contracts and all other communications between Company and Vendor in connection with Vendor's Processing of Personal Information pursuant to the provision of the Services to Company.
- 4.6. The covenants set out in this Undertaking are separate and severable and enforceable accordingly and whilst the restrictions are considered by the parties to be reasonable in all the circumstances as at the date hereof, it is acknowledged that restrictions of such a nature may be invalid because of changing of the circumstances or other unforeseen reasons and accordingly, if any restrictions shall be adjudged to be void or ineffective for whatever reason but would be adjudged to



be valid and effective if part of the wording thereof were deleted or the periods thereof reduced, such modifications shall be applied as may be necessary to make them valid and effective.

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